

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CIV2102919

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: SHIYING JIN, ET AL

vs.

DEFENDANT: BUCK INSTITUTE FOR
RESEARCH ON AGING

NATURE OF PROCEEDINGS: MOTION – SUMMARY ADJUDICATION

RULING

The Motion of Plaintiffs Lei Lei and Shiyang Jin’s (“Plaintiffs”) for Summary Adjudication of Buck Institute for Research on Aging’s (Defendant Buck”) 18th Affirmative Defense in the Answer to the Original Complaint and Defendant Buck and defendant Eric Verdin’s (“Defendant Verdin”) (collectively “Defendants”) 1st Affirmative Defense in the Answer to the Second Amended Complaint is **DENIED**.

MOTION IS MOOT AS TO ANSWER TO ORIGINAL COMPLAINT

As an initial matter, it is unclear why the Motion addresses both the Answer to the Original Complaint (10/29/21) *and* the operative Answer to the Second Amended Complaint (11/28/23). Once the amended complaint was filed, that amended complaint superseded the original complaint. The Answer to that amended pleading became the operative Answer. There is therefore no need, or basis, for the Court to rule on affirmative defenses made only in the Answer to the Original Complaint and not asserted in the operative Answer. The Motion is therefore DENIED as moot as to the 18th Affirmative Defense in the Answer to the Original Complaint.

REQUEST FOR JUDICIAL NOTICE

Plaintiffs’ Request for Judicial Notice No. 1 is GRANTED. (Evid. Code, § 452, subd. (d).)

OBJECTIONS TO EVIDENCE

The Court need only rule on those objections to evidence that it deems material to its disposition of the motion. (See Code Civ. Proc., § 437c(q).)

LEGAL STANDARD

“A party may move for summary adjudication as to ... one or more affirmative defenses, ... if the party contends ... that there is no merit to an affirmative defense as to any cause of action....” (Code Civ. Proc., § 437c, subd. (f)(1).) When a plaintiff moves for summary adjudication on an affirmative defense, the court shall grant the motion “*only if it completely disposes*” of the defense. (Code Civ. Proc., § 437c, subd. (f)(1), *italics added*.)

“The plaintiff bears the initial burden to show there is no triable issue of material fact as to the defense and that he or she is entitled to judgment on the defense as a matter of law. In so doing, the plaintiff must negate an essential element of the defense or establish the defendant does not possess and cannot reasonably obtain evidence needed to support the defense.” (*See's Candy Shops, Inc. v. Superior Court* (2012) 210 Cal.App.4th 889, 899-900.) “If the plaintiff does not make this showing, ‘it is unnecessary to examine the [defendant's] opposing evidence and the motion must be denied. However, if the moving papers establish a *prima facie* showing that justifies a [ruling] in the [plaintiff's] favor, the burden then shifts to the [defendant] to make a *prima facie* showing of the existence of a triable material factual issue.’” (*Id.*, at p. 900.) “Summary adjudication is a drastic remedy and any doubts about the propriety of summary adjudication must be resolved in favor of the party opposing the motion.” (*Ibid.*)

While the statute of limitations is normally a question of fact, the question becomes one of law when the evidence is susceptible of only one reasonable conclusion. (*Filosa v. Alagappan* (2020) 59 Cal.App.5th 772, 778; *Cnty. of Santa Clara v. Atl. Richfield Co.* (2006) 137 Cal.App.4th 292, 316.)

DISCUSSION

1st Affirmative Defense – Statute of Limitations

Plaintiffs assert that the limitations statutes for their various claims provide limitations periods between one and four years. Plaintiffs acknowledge that the statutory clock began running for all causes of action except defamation on April 13, 2021, the date of Plaintiffs’ termination. (See Molineaux Decl., Ex. 21, p. 420; UMF Nos. 30, 31.) Plaintiffs contend their defamation cause of action began to run eight days later, on April 21, 2021. (*Id.*)

On April 6, 2022, Defendant Buck appealed the Court's Order Denying its Motion to Compel Arbitration and Dismiss Claims or Stay Proceedings. (UMF No. 36.) Per Code of Civil Procedure section 916, Plaintiffs argue that this appeal stayed the entire case and all matters embraced by the appeal, which Plaintiffs allege include “all claims arising from Plaintiffs’ employment.”

On May 30, 2023, the matter was remitted to this Court, the stay lifted, and the relevant limitations periods continued to run. (See Molineaux Decl., Ex. 21, p. 420; UMF No. 40.) Plaintiffs filed their First Amended Complaint on July 7, 2023, and their Second Amended Complaint on October 27, 2023. (UMF Nos. 43, 48.)

Plaintiffs assert that they filed most all causes of action in their amended complaints within the relevant limitations period, as statutorily tolled by Defendant Buck's appeal, and that the defamation cause of action was timely filed under equitable tolling principles.

For the defamation claim, Plaintiffs assert that the 1 year statute of limitations began to run on April 21, 2021. (See Molineaux Decl., Ex. 21, p. 420.) They argue that the statutory clock stopped on April 26, 2022, and restarted on May 30, 2023 with fifteen days left on it. (*Id.*; but see clarification in Reply p. 3:10-14.) Plaintiffs assert this deadline would have expired on June 14, 2023. (*Id.*) The First Amended Complaint containing the defamation cause of action was not filed until July 7, 2023, after Plaintiffs admit the statutory deadline expired. (See UMF No. 43.) Plaintiffs therefore rely on equitable tolling to avoid application of the statute of limitations Affirmative Defense as to this cause of action.

Equitable tolling is a judge-made doctrine “which operates independently of the literal wording of the Code of Civil Procedure” to suspend or extend a statute of limitations as necessary to ensure fundamental practicality and fairness. (*Lantzy v. Centex Homes* (2003) 31 Cal.4th 363, 370, *as modified* (Aug. 27, 2003).) Courts have applied equitable tolling in carefully considered situations to prevent the unjust technical forfeiture of causes of action, where the defendant would suffer no prejudice. (*Id.*) As with other general equitable principles, application of the equitable tolling doctrine requires a balancing of the injustice to the plaintiff occasioned by the bar of his claim against the effect upon the important public interest or policy expressed by the limitations statute. (*Id.*, at p. 371.) “Tolling can only suspend the running of a statute that still has time to run; it cannot revive a statute which has already run out.” (*Mills v. Forestex Co.* (2003) 108 Cal.App.4th 625, 651–52.) Equitable tolling is a question of fact. (*Transp. Ins. Co. v. TIG Ins. Co.* (2012) 202 Cal.App.4th 984, *as modified on denial of reh'g* (Feb. 2, 2012).)

As Plaintiffs note, the “application of the doctrine of equitable tolling requires timely notice, and lack of prejudice to the defendant, and reasonable good faith conduct by plaintiff.” (Memo P&A p. 20:15-17, citing *Addison v. State of California* (1978) 21 Cal.3d 313, 319.) Plaintiffs UMF only touch on the notice portion of the equation. (UMF No. 39.) There are no UMF provided which address prejudice, or lack thereof, and whether Plaintiffs’ conduct was reasonable and in good faith. Argument in Plaintiffs’ Memorandum of Points and Authorities does not excuse this omission.

Due to this failure, the Moving Papers do not sufficiently meet Plaintiffs’ burden on summary adjudication and have failed to show Plaintiffs are entitled to summary adjudication of this affirmative defense as a matter of law. (See’s *Candy Shops, Inc. v. Superior Court*, *supra*, 210 Cal.App.4th at p. 899-900.)

Contrary to Plaintiffs’ assertion, the Motion must completely dispose of an affirmative defense. (Code Civ. Proc., § 437c, subd. (f)(1).) If the affirmative defense survives summary judgment as to any cause of action, the motion for summary adjudication of that affirmative defense must be denied. Accordingly, the Court need not and does not reach the arguments surrounding the tolling of statutory deadlines while the arbitration order was on appeal.

The Motion is DENIED.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

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If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CIV2104334

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: MARICOPA MEADOWS
HOMEOWNERS ASSOCIATION

vs.

DEFENDANT: EDWARD L. SPENCER, ET
AL

NATURE OF PROCEEDINGS: MOTION – ATTORNEY’S FEES

RULING

This is the third motion of Plaintiff Maricopa Meadows Homeowners Association for an award of attorneys’ fees and costs in connection with enforcement of a judgment. Plaintiff has not demonstrated that the attorney time, some of which dates back to 2024, was necessary for enforcement of the judgment. The motion is therefore **DENIED**.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0001962

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: SEAN ALEXANDER, ET
AL

vs.

DEFENDANT: D'ERRICA PERRYMAN,
ET AL

NATURE OF PROCEEDINGS: MOTION – OTHER: PREFERENCE

RULING

The motion for trial preference by plaintiff Ursula Goldstone ("Plaintiff") is **GRANTED**. (Code Civ. Proc., § 36, subds. (a), (e).) Plaintiff is over 70 years of age, she has a substantial interest in this action as a whole, and her health is such that a preference is necessary to prevent prejudice to her interest in the litigation. (Code Civ. Proc., § 36, subd. (a); *Fox v. Superior Court* (2018) 21 Cal.App.5th 529, 534.) In the alternative, the Court finds that the interests of justice will be served by granting this preference. (Code Civ. Proc., § 36, subd. (e).)

All parties are ordered to appear on **September 15, 2026, at 1:30 p.m. in Courtroom A** for a trial-setting and case management conference, at which time the Court will set the preferential trial date for the action as a whole consistent with this Order. The Court will also address the scheduling of remaining discovery, expert disclosure, dispositive motions, and Plaintiffs' pending motion for leave to file a Fourth Amended Complaint. Nothing in this Order shall extend the trial date beyond the period prescribed by Code of Civil Procedure section 36, subdivision (f).

Background

This is a wrongful eviction action brought by thirteen named plaintiffs arising out of alleged habitability conditions at a residential property. Plaintiff is a 95-year-old named plaintiff (date of birth July 24, 1930) who is enrolled in in-home hospice care through Madrona Hospice Care, Inc. Plaintiffs commenced this action on February 1, 2024, and trial is presently set for January 7, 2027.

Plaintiff filed the present motion seeking mandatory trial preference under Code of Civil Procedure section 36, subdivision (a), an order setting trial within 120 days, and case management directives to effectuate the preference. Defendants Tottenham Investments, Inc. and

BLVD Residential, Inc. do not oppose preference and ask that any advanced trial date apply to the action as a whole. Defendants Sausalito Evergreen SPE, LLC and North Coast Property Group, Inc. (the "North Coast Defendants") oppose the motion and separately object to Exhibit A to the declaration of Plaintiff's counsel.

Legal Standard

Code of Civil Procedure section 36, subdivision (a) provides:

A party to a civil action who is over 70 years of age may petition the court for preference, which the court shall grant if the court makes both of the following findings:

- (1) The party has a substantial interest in the action as a whole.
- (2) The health of the party is such that a preference is necessary to prevent prejudicing the party's interest in the litigation.

(Code Civ. Proc., § 36, subd. (a).)

Code of Civil Procedure section 36, subdivision (e) provides:

Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference.

(Code Civ. Proc., § 36, subd. (e).)

Code of Civil Procedure section 36, subdivision (f) provides that:

Upon the granting of such a motion for preference, the clerk shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Such a continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party.

(Code Civ. Proc., § 36, subd. (f).)

Additionally, pursuant to Code of Civil Procedure section 36.5:

An affidavit submitted in support of a motion for preference under subdivision (a) of Section 36 may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party. The affidavit is not admissible for any purpose other than a motion for preference under subdivision (a) of Section 36.

(Code Civ. Proc., § 36.5.)

Discussion

The North Coast Defendants do not dispute that Plaintiff is over the age of 70 or that she has a substantial interest in this action as a whole, and the Court so finds. (Code Civ. Proc., § 36, subd. (a)(1); *Rice v. Superior Court* (1982) 136 Cal.App.3d 81, 88 [a named plaintiff in a civil action necessarily possesses a substantial interest in the case as a whole].) The contested questions are whether Exhibit A and the supporting declaration are competent to establish the health element, and whether Plaintiff's showing satisfies the standard of subdivision (a).

The Evidentiary Objection to Exhibit A Is Overruled

The North Coast Defendants object to Exhibit A — the Hospice Physician Certification of Terminal Illness of Dr. Estelita Carandang — on grounds of lack of authentication and foundation, invoking Evidence Code sections 1400, 1401, 403, and 702, and authorities governing the admission of documentary evidence. (See *People v. Goldsmith* (2014) 59 Cal.4th 258, 266; *People v. Beckley* (2010) 185 Cal.App.4th 509, 515; *Angelus Chevrolet v. State* (1981) 115 Cal.App.3d 995, 1001-1002.) Those authorities address the foundation required to admit documents into evidence at trial. A motion for preference under section 36, subdivision (a), is not measured by that standard.

Declarations submitted in support of a motion for preference are held to a different and more relaxed standard than ordinary evidence. By statute, such a motion "may be signed by the attorney for the party seeking preference based upon information and belief as to the medical diagnosis and prognosis of any party." (Code Civ. Proc., § 36.5.) As *Fox* holds, a section 36(a) motion "includes no requirement of a doctor's declaration" and may be supported by nothing more than an attorney's declaration; such a declaration "can consist entirely of hearsay and conclusions." (*Fox, supra*, 21 Cal.App.5th at pp. 534-535.) Declarations offered in support of preference may therefore be conclusory in nature, and they are not subject to the evidentiary strictness applied to testimony offered at trial. The declaration is not admissible for any purpose other than the preference motion. (Code Civ. Proc., § 36.5.)

Measured against that standard, the declaration of Plaintiff's counsel is sufficient. Counsel attests, on personal knowledge and on information and belief, that Plaintiff is enrolled in hospice care and that her hospice physician has certified a life expectancy of six months or less if her illness runs its normal course, and he represents that he has reviewed the underlying records. Section 36.5 expressly permits that showing to rest on the attorney's information and belief as to Plaintiff's diagnosis and prognosis. The asserted defects in the formal authentication of Exhibit A do not defeat a showing the Legislature has authorized counsel to make on information and belief, and the certification and its narrative are properly considered as the basis for that belief. The objection is **OVERRULED**.¹

¹ With Plaintiff's reply, Plaintiff's counsel provides additional support for the authentication of the medical information received to support counsel's information and belief regarding Plaintiff's medical diagnosis and prognosis. The Court did not have to consider this information, as Plaintiff's counsel's

Page 3 of 5

Plaintiff Has Satisfied the Health Element of Subdivision (a)

The North Coast Defendants contend that Plaintiff's showing is stale because the February 10, 2026 certification covered a hospice benefit period ending May 10, 2026 and stated a six-month prognosis that, they argue, elapsed on August 10, 2026, before the September 8, 2026 hearing. The argument misapprehends the statutory inquiry. Plaintiff is not required to show that she suffers from a life-threatening condition; some showing of age combined with an impaired state of health suffices. (Code Civ. Proc., § 36, subd. (a); see also Code Civ. Proc., § 36.5; *Fox, supra*, 21 Cal.App.5th at p. 534.) The question under subdivision (a) is not "whether an elderly litigant might die before trial or become so disabled that she might as well be absent when trial is called;" it is whether the party's "health . . . is such that a preference is necessary to prevent prejudicing [her] interest in the litigation." (*Fox, supra*, 21 Cal.App.5th at pp. 534-535.)

The record establishes that Plaintiff is 95 years old and suffers from advanced, end-stage cardiac disease with progressive functional decline, profound frailty and malnutrition, a predominantly bed-to-chair functional status requiring 24-hour caregiver support, and a DNR/DNI code status. The expiration of a hospice benefit period does not establish that Plaintiff's health has improved; the natural inference from a certified terminal trajectory is continued decline, not recovery. The North Coast Defendants fail to controvert the proffered showing with "*competent medical* or other evidence." (Weil & Brown, Cal. Practice Guide: Civ. Pro. Before Trial (2025) ¶ 12:247.4, italics in original; see also *Fox, supra*, 21 Cal.App.5th at p. 535 [noting the defendant's failure to submit any evidence controverting the plaintiff's declarations].) On this record, Plaintiff's health is such that a preference is necessary to prevent prejudicing her interest in the litigation.

Preference Is Mandatory; No Balancing of Interests Is Permitted

Because Plaintiff satisfies the requirements of subdivision (a), preference "must be granted. No weighing of interests is involved." (*Fox, supra*, 21 Cal.App.5th at p. 535.) The Court has no discretion to deny a qualifying motion by balancing the competing interests of the litigants, the state of discovery, or the court's own calendar and resources. (*Swaites v. Superior Court* (1989) 212 Cal.App.3d 1082, 1085-1086; *Miller v. Superior Court* (1990) 221 Cal.App.3d 1200, 1204-1205; *Sprowl v. Superior Court* (1990) 219 Cal.App.3d 777, 780-781; *Koch-Ash v. Superior Court* (1986) 180 Cal.App.3d 689, 694.) "Failure to complete discovery or other pretrial matters does not affect the absolute substantive right to trial preference for those litigants who qualify for preference under subdivision (a) of section 36." (*Swaites, supra*, 212 Cal.App.3d at pp. 1085-1086.) Accordingly, the incomplete state of discovery and the pending motion for leave to amend do not provide a basis to deny or defer the preference to which Plaintiff is entitled.

Trial Setting and Case Management

Upon granting preference, the Court "shall set the matter for trial not more than 120 days from that date." (Code Civ. Proc., § 36, subd. (f); *Pabla v. Superior Court* (2023) 90 Cal.App.5th 599, 607.) Defendants Tottenham Investments, Inc. and BLVD Residential, Inc. do not oppose preference and request that any advanced trial date apply to the action as a whole; both they and the North Coast Defendants raise the pending motion for leave to file a Fourth Amended

initial declaration was sufficient in and of itself.

Complaint and the volume of remaining discovery. The mandatory preference to which Plaintiff is entitled cannot be defeated by those considerations. (*Swaithe*, *supra*, 212 Cal.App.3d at pp. 1085-1086.) They may, however, be accommodated in fashioning the orders necessary to give the preference effect. Because thirteen plaintiffs assert overlapping claims arising from the same property and conditions, and separate trials would risk duplicative proceedings and inconsistent results, the preferential trial date shall apply to the action as a whole. The Court will address the schedule for remaining discovery, expert disclosure, dispositive motions, and the pending motion for leave to amend at the conference set above; nothing in this Order resolves that motion or enlarges the 120-day period prescribed by section 36, subdivision (f).

Having found that Plaintiff has met the statutory requirements of Code of Civil Procedure section 36, subdivision (a), and even had the Court not found that Plaintiff met that burden, based upon Plaintiff's showing, the Court is satisfied that the interests of justice will be served by granting this preference additionally pursuant to Code of Civil Procedure section 36, subdivision (e). (Code Civ. Proc., § 36, subd. (e).)

Accordingly, the motion for trial preference is **GRANTED**.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0004188

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: CITY OF LARKSPUR vs. DEFENDANT: ROSE LANE MASTER ASSOCIATION	
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NATURE OF PROCEEDINGS: MOTION – EVIDENTIARY – DISCOVERY FACILITATOR PROGRAM

RULING

The City of Larkspur’s (“The City” or “Plaintiff”) Motion to Resolve Disputed Evidentiary and Legal Issues Affecting the Determination of Compensation is GRANTED.

Objections to Evidence

Defendant Rose Lane Master Association’s (“Defendant”) Objections to the Skinner Declaration Nos. 1-3 are OVERRULED.

Defendant’s Objection to Plaintiff’s Reply in Support of Motion is OVERRULED. Although titled as an Objection, the document does not follow the rules for Objections and does not identify the material objected to by page and line number. However, the Court notes that the legal premise advanced by the document is sound – relief is limited to that which was identified in the Notice of Motion and requests outside that scope raised for the first time in the Reply will not be granted.

Background

In support of its Motion, Plaintiff provides the following background:

In 2010, the Larkspur City Council approved the Rose Garden Precise Development Plan, which laid out the long-term plans for the Rose Garden Subdivision. (Skinner Decl., ¶ 3.) Per the development agreement for the subdivision, the developer dedicated a large parcel in the northwest portion of the subdivision to the City for community uses. (*Id.*) In 2013, the City Council adopted a Master Plan, which provided for development of the Larkspur Library and Community Space (the “Project”) on this parcel. (*Id.*) The Project includes a public library,

community space, outdoor gathering spaces, and a parking area. (*Id.*, ¶ 4.) Access to the Project’s parking area is via Rose Lane, south of Doherty Drive. (*Id.*) Rose Lane is a private street owned by Defendant, which is the homeowners’ association for the Rose Garden Subdivision. (*Id.*)

To provide public access to the new library, the City brought this eminent domain action to acquire a permanent public right-of-way easement across a portion of Rose Lane. (See Compl.) The right-of-way easement is for public roadway purposes and includes the right to construct, reconstruct, and maintain improvements on the easement area. (See Compl., Ex. 2.) The area of Rose Lane over which the City is acquiring the public right-of-way easement is already encumbered by five other easements and is designated as a street on the subdivision map. (Skinner Decl., ¶ 5, Ex. 1 (Subdivision Map).) Four of the easements—a Drainage Easement, City Access Easement, Public Utility Easement, and Waterline Easement—cover the entirety of Rose Lane. (*Id.*, Ex. 1, p. 4.) These easements require that the easement area be “kept open and free from buildings and structures of any kind.” (*Id.*) In addition to the four easements covering the entirety of Rose Lane, a 15-foot-wide Sanitary Sewer Easement runs down the center of the street. (*Id.* ¶ 6 & Ex. 1, p. 4.) The Sanitary Sewer Easement prevents the Owner from planting trees with large root systems or constructing permanent structures of any kind. (*Id.*, Exh. 2 (Sanitary Sewer Easement), p. 1.)

By this Court’s order, the City took possession of the public right-of-way easement on February 17, 2025. See Notice of Entry of Order of Possession (filed Feb. 7, 2025). Thereafter, the City reconstructed that portion of Rose Lane to provide access to the new library, which included widening the street, re-routing a portion of the sidewalk, adding a traffic circle to the street, relocating some streetlights, and removing and replacing some landscaping. (Skinner Decl., ¶ 7-9 & Ex. 3 (Library Development Plans).)

The matter of compensation due to Defendant remains outstanding. Trial is currently set for October 15, 2026. During the pretrial exchange of valuation data used by each side’s experts, a dispute has arisen over legal issues surrounding valuation methodology.

The City brings this Motion pursuant to Code of Civil Procedure section 1260.040(a), and asks the Court to rule that (1) Rose Lane and its improvements must be valued in the condition in which the Owner actually held them, encumbered by the existing easements and subdivision map; and (2) any opinion deducting for those encumbrances must measure the deduction against the same standard used to derive the unencumbered value.

Legal Standard

The California Supreme Court’s decision in *Weiss v. People ex rel. Dep’t of Transportation* (2020) 9 Cal.5th 840, 852–56, provides a summary of the law applicable in this case:

The California Constitution guarantees “just compensation” whenever private property is “taken or damaged for a public use.” (*Id.*, at p. 852 citing Cal. Const., art. I, § 19, subd. (a).) Eminent domain and inverse condemnation are distinct procedures for ensuring that property owners receive just compensation whenever public entities take or damage their property. (*Id.*) Certain

aspects of eminent domain law and procedure are codified in the Code of Civil Procedure - among them section 1260.040—make up the Eminent Domain Law. (*Id.*)

In an eminent domain action, a public entity exercises its authority to condemn private property. (*Id.*) The public entity concedes liability at the outset of an eminent domain action, so “there is ordinarily no question that [the public entity] has ‘taken or damaged’ ” the property at issue. (*Id.*, at p. 853 citing *San Diego Gas & Electric Co. v. Superior Court* (1996) 13 Cal.4th 893, 939 (*San Diego Gas*).) For this reason, “[e]minent domain actions typically focus on the amount of compensation owed the property owner.” (*Id.*, internal citations omitted.)

The state constitution further affords property owners the right to have a jury determine the amount of compensation they are owed when a public entity takes or damages their property. (*Id.*, citing Cal. Const., art. I, § 19, subd. (a).) However “this jury right applies only to determining the appropriate amount of compensation” (*Id.*, citing *City of Perris v. Stamper* (2016) 1 Cal.5th 576, 593 (*City of Perris*).) All other questions of fact or mixed questions of law and fact are decided by the court. (*Id.*, citing *Metropolitan Water Dist. of So. California v. Campus Crusade for Christ, Inc.* (2007) 41 Cal.4th 954, 971 (*Metropolitan Water Dist.*).)

In both eminent domain actions and inverse condemnation actions, the key evidence in a jury trial is expert testimony concerning the valuation of the property at issue. (*Id.*, at p. 854.) Eminent Domain Law provides special pretrial procedures for the exchange of valuation data used by each side's experts and the making of final offers and demands. (*Id.*, citing Code Civ. Proc., §§ 1258.210–1258.300.) Legal issues and mixed questions of law and fact frequently arise prior to trial concerning the proper measure of compensation or concerning whether the property owner is entitled to compensation for a specific kind of damage, loss, or injury. (*Id.* citing *City of Perris*, *supra*, 1 Cal.5th 576, 593–596; *Metropolitan Water Dist.*, *supra*, 41 Cal.4th at p. 971.)

The Legislature enacted section 1260.040 to promote earlier resolution of issues affecting the determination of compensation, thereby preventing these issues from improperly going to the jury and increasing the likelihood of pretrial settlement. (*Id.*, at pp. 855–6. Internal citations omitted.) Section 1260.040 authorizes a party to an eminent domain action to file a motion requesting a ruling on “an evidentiary or other legal issue affecting the determination of compensation” and provides that the trial court may postpone the deadlines for final settlement offers “for a period sufficient to enable the parties to engage in further proceedings before trial” after receiving the court's ruling on the motion. (*Id.*, at p. 856.) The section specifies that it “supplements, and does not replace any other pretrial or trial procedure otherwise available to resolve an evidentiary or other legal issue affecting the determination of compensation.” (*Ibid.* Internal citations omitted.)¹

Discussion

¹ Thus, a motion under section 1260.040 was intended to allow resolution of evidentiary and legal issues affecting the determination of compensation well before the eve of trial, and even before the parties exchange final offers and demands. (*Id.*) In recommending the Legislature adopt section 1260.040, the Law Revision Commission expressed its hope that earlier decision of these issues would narrow the gap between competing expert valuations, thereby facilitating settlement through alternative dispute resolution. (*Id.* Internal citations omitted)

On July 9, 2026, the parties served their expert witness lists and statements of valuation data pursuant to California Code of Civil Procedure section 1258.250. The City's Statement of Valuation Data concluded that just compensation for the City's acquisition of the public right of-way easement should be \$126,000. (Beaton Decl., Ex. 1 ("City's Am. SOVD") at Ex. A, p. 4.) The Owner's Statement of Valuation Data concluded that just compensation should be \$880,000. (*Id.*, Ex. 2 ("Owner's SOVD") at Ex. A, p. 4.)

The City argues that the \$754,000 difference in the experts' opinions traces to a single step in the analysis: how each appraiser accounted for the easements already encumbering Rose Lane. The Owner's appraiser concluded that the impact of the existing easements resulted in a 10 percent discount off the value of developable land. (*Id.*) In contrast, the City's appraiser reduced the value of the Rose Lane property, as developable, by 90 percent to account for the existing easements which render it undevelopable. (Beaton Decl., Ex. 1 at Ex. A, p. 4.)

The City further argues Owner's appraiser reached the 10% discount by asking whether the existing easements interfere with Rose Lane's use as a private street (they do not). The City counters that the correct question is how much those easements reduce the value of the developable land he used to set his baseline valuation. The City argues that the same error runs through the Owner's appraiser's treatment of the improvements within the easement area, which he values as though the Owner holds them free of any encumbrance.

The Opposition counters that the appraisers' difference of opinion is one of fact, an amount to be determined by the jury, and that the City's Motion misunderstands the Owner's appraiser's methodology.

Trial judges have a substantial gatekeeping responsibility when it comes to expert testimony. (*People ex rel. Dep't of Transportation v. Dry Canyon Enters., LLC* (2012) 211 Cal.App.4th 486, 493, citing *Sargon Enterprises v. Univ. of Southern Calif.* (2012) 55 Cal.4th 747, 769.) In particular, courts are to ensure that opinions are not speculative, based on unconventional matters or grounded in unsupported reasoning. (*Id.*, citing *Sargon, supra*, at pp. 771–72.) This gatekeeping role, however, does not involve choosing between competing expert opinions. The gatekeeper's focus must be solely on principles and methodology, not on the conclusions that they generate." (*People ex rel. Dep't of Transportation v. Dry Canyon Enters., LLC, supra*, at p. 493. Internal citations omitted.)

When a public entity seeks to condemn an easement over land already subject to an easement, the value of the second easement is the difference in value of the strip of land before and after the imposition of the second easement. (*County Sanitation Dist. v. Watson Land Co.* (1993) 17 Cal.App.4th 1268, 1280 ["Alternatively, if a public entity seeks to condemn an easement over land already subject to an easement, the value of the second easement is the difference in value of the strip of land before and after the imposition of the second easement. This value may only be nominal."].)

In this case, the Court agrees that Defendant's appraiser's methodology is flawed. The methodology used to generate the unencumbered parcel value must be the same as that used to generate the encumbered (in this case by five other easements) value. The appraiser would then

take that encumbered value and determine the difference after further encumbrance by the easement being taken by eminent domain. The Court rejects as unsound the methodology offered by Defendant's expert.

For these reasons, the Motion is GRANTED.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

If you are unable to join by video, you may join by telephone by calling (669) 254-5252 and using the above-provided passcode. Zoom appearance information may also be found on the Court's website: <https://www.marin.courts.ca.gov>

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0005674

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: NICO STEINER

vs.

DEFENDANT: CITY OF SAN RAFAEL

NATURE OF PROCEEDINGS: MOTION – SUMMARY JUDGMENT

RULING

Defendant City of San Rafael’s (“City”) motion for summary judgment or, alternatively, summary adjudication is **DENIED**.

Background

This is a personal injury matter relating to a pool inflatable. Plaintiff Nico Steiner (“Plaintiff”) alleges that on August 13, 2023, he used the “AquaDash” inflatable obstacle course at the Terra Linda Community Pool. (First Amended Complaint (“FAC”), p. 4.) Plaintiff was 46 years old at the time and stood at five feet, eleven inches tall. (*Ibid.*) According to the FAC, the AquaDash was placed in an area where the pool was only about four feet deep. (*Ibid.*) Plaintiff alleges that on the date in question, there was no sign advising swimmers to refrain from using the AquaDash based on age or height considerations. (*Ibid.*) Plaintiff allegedly slipped from the AquaDash and fell into the water head first, hitting his head on the bottom of the pool. (*Ibid.*) The FAC asserts causes of action for dangerous condition of public property and general negligence against the City and ten unidentified City agents or employees.

Before the Court is the City’s motion for summary judgment, or, alternatively, summary adjudication.

Legal Standard

Any party may move for summary judgment. (Code of Civ. Proc, § 437c, subd. (a); *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) The motion “shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c); *Aguilar, supra*, 25 Cal.4th 826, 843.) Similarly, a party may move for summary adjudication as to a cause of action, an affirmative defense, a claim for damages, or an issue of duty. (Code Civ. Proc., § 437c, subd. (f)(1).) “A motion for summary adjudication . . . shall proceed in all procedural respects as a

motion for summary judgment.” (Code Civ. Proc., § 437c, subd. (f)(2).) The object of the summary judgment procedure is “to cut through the parties’ pleadings” to determine whether trial is necessary to resolve the dispute. (*Aguilar, supra*, 25 Cal.4th 826, 843.)

The “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact.” (*Aguilar, supra*, 25 Cal.4th 826, 850; see Evid. Code, § 110.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (*Aguilar, supra*, 25 Cal.4th 826, 851.) When the moving party is the defendant, the initial burden entails showing “that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).) Once the moving party has met its initial burden, the burden shifts to the opposing party to “show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subds. (p)(1)-(2).) “There is a genuine issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th 826, 845.)

Discussion

Procedural Matters

The City’s Compliance with the Rules of Court

The rules governing motions for summary adjudication require the moving party to specify the issues on which summary adjudication is sought and describe those issues identically throughout the moving papers. (See Cal. Rules of Court, rule 3.1350(b).) The City has not complied with this rule, as its description of the issues varies greatly between its notice of motion and its separate statement.

A separate statement in support of a motion for summary adjudication “must separately identify . . . [e]ach cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion” and “[e]ach supporting material fact claimed to be without dispute *with respect to* the cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion.” (Cal. Rules of Court, rule 3.1350(d)(1) [emphasis added].) This requires the separate statement to be divided up by issue, listing all facts relevant to a given issue under a subheading for that issue. (See Cal. Rules of Court, rule 3.1350(h).) The obvious purpose of this rule is to enable the opposing party and the court to easily determine which facts they must contend with to defeat or decide the motion (whatever the case may be) *as to each issue*. (See *Collins v. Hertz Corp.* (2006) 144 Cal.App.4th 64, 74.) The City’s separate statement does not set forth the City’s purportedly undisputed material facts by reference to the five issues described in the City’s notice of motion. It enumerates the City’s proffered undisputed material facts by reference to Plaintiff’s two causes of action and then offers the same exact set of 47 facts as to each. The result is that the City’s separate statement does not enable either the opposing party or the court to determine, on an issue-by-issue basis, which facts are relevant.

A moving party’s failure to comply with the separate statement requirement “may in the court’s discretion constitute a sufficient ground for denying the motion.” (Code Civ. Proc., § 437c, subd.

(b)(1); see also *Beltran v. Hard Rock Hotel Licensing, Inc.* (2023) 97 Cal.App.5th 865, 876 [“Trial courts should not hesitate to deny summary judgment motions when the moving party fails to draft a compliant separate statement[.]”.) Plaintiff has not objected to the City’s noncompliance with the rules or indicated any confusion about which issues the City seeks to have summarily adjudicated. (See Opposition, p. 1.) Accordingly, the Court will not deny the motion on this procedural basis. The City is admonished to follow all applicable procedural rules moving forward.

Plaintiff’s Evidentiary Objections: All overruled.

The City’s Requests for Judicial Notice: All granted. (Evid. Code, § 452, subd. (d).)

The City’s Response to Plaintiff’s Responsive Separate Statement: The Court has not considered this document. The summary judgment statute does not provide for a “reply separate statement.” (*Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 306 [abrogated in unrelated part as stated in *Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 853, fn. 12].)

Merits

Issue 1: “Plaintiff has not established a dangerous condition of public property existed as defined under Government Code § 830 (a), as required to sustain a cause of action under Government Code § 835 et al.”

Government Code, section 835 “sets out the exclusive conditions under which a public entity is liable for injuries caused by a dangerous condition of public property.” (*Brown v. Poway Unified School Dist.* (1993) 4 Cal.4th 820, 829.) To hold the public entity liable, the plaintiff must “establish[] that the property was in a dangerous condition at the time of the injury[.]” (Gov. Code, § 835.)

A “[d]angerous condition” is “a condition of property that creates a substantial (as distinguished from a minor, trivial or insignificant) risk of injury when such property or adjacent property is used with due care in a manner in which it is reasonably foreseeable that it will be used.” (Gov. Code, § 830, subd. (a).) “Whether property is in a dangerous condition often presents a question of fact, but summary judgment is appropriate if the trial or appellate court, viewing the evidence most favorably to the plaintiff, determines that no reasonable person would conclude” that the condition met the statutory standard. (*Mathews v. City of Cerritos* (1992) 2 Cal.App.4th 1380, 1382.)

The City heavily implies that Plaintiff was not using the AquaDash “with due care in a manner in which it is reasonably foreseeable that it will be used” (Gov. Code, § 830, subd. (a)) and that this precludes any argument that the AquaDash was in a “dangerous condition.” (See Memorandum, pp. 8-9.)

First, even if Plaintiff did use the AquaDash in an unforeseeable manner or without due care, that would be irrelevant to the issue of whether the AquaDash was in a dangerous condition. (See *Fredette v. City of Long Beach* (1986) 187 Cal.App.3d 122, 131 & fn. 6.) “The negligence of a plaintiff-user of public property . . . is a defense which may be asserted by a public entity; it has

no bearing upon the determination of a ‘dangerous condition’ in the first instance. So long as a plaintiff-user can establish that a condition of the property creates a substantial risk to *any* foreseeable user of the public property who uses it with due care, he has successfully alleged the existence of a dangerous condition regardless of his personal lack of due care.” (*Id.* at p. 131 [internal citations omitted]; accord *Mathews, supra*, 2 Cal.App.4th 1380, 1384 [“Reasonably foreseeable use with due care, as an element in defining whether property is in a dangerous condition, refers to use by the public generally, not the contributory negligence of the particular plaintiff who comes before the court; the particular plaintiff’s contributory negligence is a matter of defense.”].) By contrast, “[i]f . . . it can be shown that the property is safe when used with due care and that a risk of harm is created only when foreseeable users fail to exercise due care, then such property is not ‘dangerous’ within the meaning of section 830, subdivision (a).” (*Fredette, supra*, 187 Cal.App.3d 122, 131.)

Second, the City never articulates in what manner Plaintiff was supposedly misusing the AquaDash, let alone presents evidence that he was in fact using it in such a way. In fact, the City offers as an undisputed fact that the circumstances of Plaintiff’s fall were as follows: “While navigating the AquaDash, Plaintiff stepped over the first obstacle and passed under the second. At the third obstacle, which also required stepping over, Plaintiff’s foot caught, causing him to lose his balance.” (UMF No. 4.) The City itself states that this is exactly how the AquaDash is intended to be used. (See Memorandum, p. 16 [“[T]he AquaDash is a recreational inflatable obstacle course set over a swimming pool. Participants must step over, duck under, and navigate a series of obstacles on an unstable surface while maintaining their balance over water.”]; *id.* at p. 17 [“the activity is built around” the “central physical challenge” of maintaining “one’s footing” while navigating the course].) The cases the City cites in connection with this argument involved plaintiffs who were behaving in ways that were *plainly dangerous* given the obvious features of the property. (See, e.g., *Fredette, supra*, 187 Cal.App.3d 122, 124 [plaintiff dove headfirst into water that was visibly so shallow as to make diving “hazardous”; no dangerous condition given that “no reasonable person could conclude that a swimmer, exercising due care and confronted with the notice that the condition itself provided, would have used the pier as a diving platform”]; *Mathews, supra*, 2 Cal.App.4th 1380, 1385 [child plaintiff rode his bicycle “down a very steep, wet, grassy hill”; no dangerous condition, given that the danger of doing this is “obvious from the appearance of the property itself, even to children”].) Even according to the City, Plaintiff did not do anything that is obviously dangerous to do in four feet of water unless one considers an adult using the AquaDash in the intended fashion dangerous at that depth. If that were the case, it would counsel *in favor* of the AquaDash being in a dangerous condition at the time of Plaintiff’s injury due to its placement in four feet of water and the fact that the City was allowing adults to use it. (UMF Nos. 15, 17, 31.)

The City next argues that the AquaDash was not in a dangerous condition as a matter of law because the AquaDash’s manufacturer approved the City’s AquaDash installation design plans prior to installation and the City adhered to the manufacturer’s written guidelines for placement. This argument is premised on the idea that if a product’s manufacturer approved of the way a defendant used a product, and/or if the defendant adhered to the manufacturer’s instructions, the defendant is, as a matter of law, immune from liability for injuries associated with the product’s use, regardless of whether the manufacturer’s specifications were sufficient to render the product

reasonably safe. The City presents no authority for this,¹ and it is intuitively incorrect. On this theory, had the City put the AquaDash in one foot of water with the manufacturer's blessing, the bare fact of the manufacturer's approval would absolve the City of liability even though the AquaDash would obviously be dangerous under those circumstances. Whatever the AquaDash's manufacturer said, a jury could reasonably conclude that, given that the fun of the AquaDash comes from falling into the pool and the City was letting adults use it (UMF 31), placing the AquaDash such that a substantial portion of it was in water much less deep than almost any adult is tall (four feet, UMF Nos. 15, 17) "create[d] a substantial (as distinguished from a minor, trivial or insignificant) risk of injury" when the AquaDash was "used with due care in a manner in which it [was] reasonably foreseeable that it [would] be used." (Gov. Code, § 830, subd. (a).)

Finally, the City argues that the AquaDash's accident-free history means it was not in a dangerous condition as a matter of law. The City concedes that an accident-free history is not dispositive of whether a dangerous condition existed. (*Salas v. Department of Transportation* (2011) 198 Cal.App.4th 1058, 1071; *Lane v. City of Sacramento* (2010) 183 Cal.App.4th 1337, 1346.) It contends, however, that the City's AquaDash's unproblematic history is "strong evidence that the AquaDash did not constitute a dangerous condition[.]" particularly "combined with the City's compliance with manufacturer specifications and the open and obvious nature of the risk[.]" (Memorandum, p. 11.) When ruling on a motion for summary judgment or adjudication, the Court is not permitted to weigh evidence the way the City is inviting it to here. Its job is to determine whether the City's showing compels the conclusion that, as a matter of law, Plaintiff *cannot establish* that a dangerous condition existed. (Code Civ. Proc., § 437c, subd. (p)(2).)

Summary adjudication is DENIED as to this issue.

Issue 2: "Plaintiff cannot establish the City created or had actual or constructive notice of the alleged dangerous condition as required by Government Code § 835.2 et al."

In addition to proving the existence of a dangerous condition at the time of the injury, a plaintiff seeking to hold a public entity liable for injuries caused by a dangerous condition of public property must establish "that either: (a) A negligent or wrongful act or omission of an employee of the public entity within the scope of his employment created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition." (Gov. Code, § 835; *Brown, supra*, 4 Cal.4th 820, 829.)

A plaintiff who opts to show that the public entity's employee created the dangerous condition must show not merely that the employee's conduct created the condition, but also that such conduct was negligent. (*Metcalf v. County of San Joaquin* (2008) 42 Cal.4th 1121, 1136.) The City's argument that Plaintiff cannot do this rests on the idea that the AquaDash's manufacturer

¹ The closest the City comes to supporting this with authority is the following, citing *Fredette, supra*, 187 Cal.App.3d 122, 131 and *Mathews, supra*, 2 Cal.App.4th 1380, 1383: "[T]he absence of [a warning sign restricting AquaDash use to people aged 6-14 and a maximum of 5'10" tall] does not itself establish a dangerous condition where the hazard is open and obvious *and the property was operated in compliance with manufacturer specifications.*" (Memorandum, p. 10 [emphasis added].) Neither *Fredette* nor *Mathews* discusses the defendant's compliance with a product manufacturer's specifications or instructions.

approved the City's installation design plans for the AquaDash before City made the course available to the public and that the City fully complied with the manufacturer's instructions. (Memorandum, p. 12.) Assuming for purposes of argument that these facts are true, the City does not offer any authority for the idea that they establish that no City employee acted negligently in relation to the AquaDash, or that the City is otherwise immune from liability, as discussed above. The City also points out that "[a] lifeguard was stationed at the AquaDash during its operation[.]" (Memorandum, p. 12) The City does not explain how this compels the conclusion that no City employee acted negligently in creating a dangerous condition. A failure to install, or permit use of, the AquaDash in the manner a reasonably prudent person would under the circumstances (see *Minnegren v. Nozar* (2016) 4 Cal.App.5th 500, 507) may be negligent regardless of the presence of a lifeguard the same way any potentially injurious conduct may be negligent even if done within a hospital. The City also argues that "the City's rules of use were actively enforced." (*Ibid.*) That City employees were not negligent in their enforcement of the City's rules of use, even if true, does not preclude their negligently causing the AquaDash to constitute a dangerous condition. The AquaDash could have constituted a dangerous condition even if the City flawlessly enforced its rules of use. Here, Plaintiff's claim is that the AquaDash was in a dangerous condition because it was placed in inappropriately shallow water (FAC, p. 4), so pointing out that the City was enforcing its rules of use is simply not responsive to the claim.

The City has not demonstrated that, accepting for purposes of argument that the AquaDash was in a "dangerous condition," no "negligent or wrongful act or omission of an employee of [the City] within the scope of his employment created" that condition. (Gov. Code, § 835, subd. (a).) Because the City has not foreclosed the possibility that Plaintiff may hold it liable under Section 835(a), the Court has no occasion to address whether the City has shown that it cannot be held liable as a matter of law under Section 835(b) (actual or constructive notice). (See *Hawkins v. Wilton* (2006) 144 Cal.App.4th 936, 945 [where a defendant has failed to foreclose an avenue to liability, the trial court is to conclude that the defendant failed to carry its burden and deny the motion for summary judgment].)

Summary adjudication is DENIED as to this issue.

Issue 3: "The City has established the affirmative defense of waiver bars Plaintiff's cause of action for dangerous condition of public property, as alleged under Government Code § 835 et al."

On the date of the incident, Plaintiff signed a sign-in sheet labeled "TERRA LINDA COMMUNITY POOL REC SWIM." (UMF No. 44; City's Ex. D.) The sign-in sheet reads in part: "I HAVE READ THE HOLD HARMLESS AND RELEASE AGREEMENT AND FULLY UNDERSTAND THE I [sic] ASSUME RISKS FOR ANY INJURIES AND PROPERTY DAMAGES SUFFERED. IN ADDITION, I HAVE READ ASSUMPTION OF THE RISK AND WAIVER OF LIABILITY TO CORONAVIRUS/COVID19." (UMF 46; City's Ex. D.)

The Hold Harmless and Release Agreement itself was not a part of the sign-in sheet. The City offers evidence that it was "posted at the entrance[.]" (Younkin Dec., ¶ 17.) The Hold Harmless and Release Agreement provides:

“The undersigned on behalf of himself/herself and on behalf of any child enrolled by the undersigned in the program, in consideration of participation in this program, agrees to indemnify and hold harmless, and to release, waive, and discharge, the City of San Rafael against any claim, demand, suit, judgment, loss, liability or expense of any kind, . . . on account of personal injuries or damages sustained by any person or property arising out of or in any way connected with participation by the undersigned or the enrolled child in this program, including injuries due to the active or passive negligence of the City, its officers, employees, agents, and volunteers. . . . I recognize that bodily injury and/or property damage may be sustained through participation in this activity and acknowledge that I/we voluntarily accept all risks of injury to persons or property.”

(City’s Ex. D.)

A plaintiff’s express contractual assumption of a risk – that is, his signing a release or a waiver agreement – may preclude liability for negligence by negating the element of duty. (*Benedek v. PLC Santa Monica, LLC* (2002) 104 Cal.App.4th 1351, 1356; *Sweat v. Big Time Auto Racing, Inc.* (2004) 117 Cal.App.4th 1301, 1304.) “In order for a release of liability to be held enforceable against a plaintiff, it ‘must be clear, unambiguous and explicit in expressing the intent of the parties’; the act of negligence that results in injury to the releasee must be reasonably related to the object or purpose for which the release is given; and the release cannot contravene public policy.” (*Sweat, supra*, 117 Cal.App.4th 1301, 1304-1305 [quoting *Madison v. Superior Court* (1988) 203 Cal.App.3d 589, 598] [internal citations omitted].)

In *Whitehead v. City of Oakland* (2025) 17 Cal.5th 735, the Supreme Court observed that “under [S]ection 835[,] public entities owe members of the public a ‘duty not to maintain public premises in a dangerous condition.’ ” (17 Cal.5th 735, 748-749 [quoting *Zelig v. County of Los Angeles* (2002) 27 Cal.4th 1112, 1133].) *Whitehead* held that releases precluding actions arising from a violation of this statutory duty violate Civil Code, section 1668 (relating to contracts contrary to public policy) and are unenforceable. (*Whitehead, supra*, 17 Cal.5th 735, 750-751.) The City acknowledges that Plaintiff is suing it for an alleged violation of its statutory duty, under Government Code, section 835, to refrain from maintaining public property in a dangerous condition. (See Notice of Motion, p. 1 [description of Issue Nos. 1 and 4], Memorandum, p. 7.) Under *Whitehead*, the release is unenforceable to the extent it purports to bar an action against the City for negligent violation of its statutory duty under Section 835.

Also, the Court is not persuaded that the release is clear and unambiguous and considers this a jury issue. (See *Sweat, supra*, 117 Cal.App.4th 1301, 1304-1305.) The Hold Harmless and Release Agreement purports to waive actions arising out of injuries sustained from participation in an unidentified “program[.]” (UMF No. 47; Ex. D.) It does not specify what “program” it is referring to beyond making clear that adults “enroll[.]” their children in it. (City’s Ex. D.) This is not a natural way to refer to mere “use of the pool,” which is what the City contends the release covers (Memorandum, p. 15), or use of an inflatable obstacle course within the pool. Elsewhere, the release refers to the activity at issue simply as “the above-mentioned activity” (it is not described above this point beyond references to “the program”) or “this activity[.]” (City’s Ex. D.) The release does not, as the City argues, “describe[] the activity” at issue. (Memorandum, p. 15.)

Summary adjudication is DENIED as to this issue.

Issue 4: “The City has established the affirmative defense of primary assumption of risk bars Plaintiff’s cause of action for dangerous condition of public property, as alleged under Government Code § 835 et al.”

The primary assumption of risk doctrine is “a rule of limited duty[.]” (*Nalwa v. Cedar Fair, L.P.* (2012) 55 Cal.4th 1148, 1154.) The doctrine applies “to activities classified as sports, . . . as well [as] to other recreational activities ‘involving an inherent risk of injury to voluntary participants . . . where the risk cannot be eliminated without altering the fundamental nature of the activity.’ ” (*Id.* at p. 1156 [quoting *Beninati v. Black Rock City, LLC* (2009) 175 Cal.App.4th 650, 658].) Primary assumption of risk “precludes liability for injuries arising from those risks deemed inherent” in the activity. (*Avila v. Citrus Community College Dist.* (2006) 38 Cal.4th 148, 161.) “[A]s a matter of law, others have no legal duty to eliminate those risks or otherwise protect a sports participant from them.” (*Ibid.*) “A risk is inherent in a sport if its elimination (1) would chill vigorous participation in the sport; and (2) would alter the fundamental nature of the activity.” (*Sanchez v. Hillerich & Bradsby Co.* (2002) 104 Cal.App.4th 703, 713.)

Where primary assumption of risk applies, “operators, instructors and participants in the activity owe other participants only the duty not to act so as to *increase* the risk of injury over that inherent in the activity.” (*Nalwa, supra*, 55 Cal.4th 1148, 1154 [emphasis in original]; accord *Luna v. Vela* (2008) 169 Cal.App.4th 102, 111.) “If it is determined that the actions of a defendant did increase the risk of harm above that inherent in the sport, primary assumption of risk is not available[.]” (*Sanchez, supra*, 104 Cal.App.4th 703, 712.)

The use of an inflatable obstacle course on water involves an inherent risk of falling into the water. That risk is what makes the obstacle course fun. But that the risk of slipping and falling into the water is inherent in use of an aquatic obstacle course does not preclude a determination that the City unreasonably increased the inherent risk that Plaintiff would be injured by a fall from the AquaDash. Similarly, the inherent risk that a baseball player may be injured by “a sharply batted ball” did not preclude liability in *Sanchez, supra*, 104 Cal.App.4th 703, where the plaintiff presented evidence that the bat manufactured by the defendant substantially increased this risk. (104 Cal.App.4th 703, 715 [defense motion for summary judgment denied].) That running into an object while skiing is an inherent risk of the sport did not preclude liability where the defendant ski resort “increased the risk of harm by placing a signpost in the ski run where it was virtually invisible to skiers[.]” (*Van Dyle v. S.K.I. Ltd.* (1998) 67 Cal.App.4th 1310, 1317-1318 [defense motion for summary judgment denied].) “As a general rule, where an operator can take a measure that would increase safety and minimize the risks of the activity *without also altering the nature of the activity*, the operator is required to do so.” (*Grotheer v. Escape Adventures, Inc.* (2017) 14 Cal.App.5th 1283, 1300 [emphasis in original].)

Where a plaintiff alleges that a defendant’s conduct increased the risk to the plaintiff beyond that inherent in an activity, and the defendant moves for summary judgment on the basis that the primary assumption of risk doctrine obviated its duty to the plaintiff, it is the defendant’s burden to establish that its conduct did not increase the risk of harm beyond that inherent in the sport. (*Luna, supra*, 169 Cal.App.4th 102, 112.) For example, in *Vine v. Bear Valley Ski Co.* (2004) 118 Cal.App.4th 577, 591, the plaintiff alleged that the nature of the defendant’s snow board jump increased the risk of injury to snowboarders above that inherent in the sport. (118 Cal.App.4th 577, 591.) Given this allegation, the First District observed that “in order to

establish it owed no duty to [the plaintiff] because she had assumed the risk of injury, [the defendant] had to show either that its jump did not increase the inherent risks of snowboard jumping, or that whatever defects the jump may have had were included in those risks.” (*Ibid.*) The defendant “attempted neither showing in its moving papers, contending merely that falling is an inherent risk of the sport.” (*Ibid.*) The First District stated that this was “not sufficient” to shift to the plaintiff “the burden of raising a triable issue of fact as to whether the jump posed risks beyond those inherent in snowboard jumping.” (*Ibid.*) As a result, “the [trial] court’s denial of [a defense motion for] summary judgment on primary assumption of risk was clearly correct.” (*Ibid.*)

In this case, Plaintiff’s complaint alleges that the City’s employees “substantially increased [AquaDash] users’ risk of significant bodily injury should they fall off the AquaDash” by placing the AquaDash in an insufficiently deep part of the pool, allowing people taller than the manufacturer-specified maximum height to use the AquaDash, and allowing people outside the manufacturer-specified age range to use the AquaDash. (FAC, p. 5.) Given this allegation, to meet its initial burden, the City must show one of the following: (1) Neither its placement of the AquaDash nor its allowing people outside the manufacturer-specified age range and height limitation increased the inherent risks of using an aquatic inflatable obstacle course like the AquaDash; or (2) The inherent risks of using a course like the AquaDash include the risk that the provider of the activity will place it in insufficiently deep water or fail to adhere to the manufacturer’s user specifications. (See *Vine, supra*, 118 Cal.App.4th 577, 591; *Luna, supra*, 169 Cal.App.4th 102, 112.)

The City argues merely that “the risk of losing one’s balance and falling off the AquaDash is inherent in the activity[.]” (Memorandum, p. 17.) This is exactly what the First District stated was not enough to shift the burden in *Vine, supra*, 118 Cal.App.4th 577, 591.

The City has attempted to establish that it *did* comply with the AquaDash’s manufacturer’s user specifications in all respects. It does not make this point in connection with its primary assumption of risk argument, but the Court will address it here regardless.

First, the Court is not persuaded that the City’s establishing its compliance with the manufacturer’s user specifications would defeat either of Plaintiff’s claims. Had Plaintiff pleaded that the City created a dangerous condition or breached a duty *exclusively* by failing to adhere to the manufacturer’s user specifications, demonstrating that the City did not do that would defeat Plaintiff’s claims by negating his theory of liability as pleaded. (See *Van v. Target Corp.* (2007) 155 Cal.App.4th 1375, 1387 [“ ‘[A] summary judgment motion is directed to the issues framed by the pleadings.’ . . . ‘[A] party cannot successfully resist summary judgment on a theory not pleaded[.]’ ”] [quoting *Hilton K. v. Greenbaum* (2006) 144 Cal.App.4th 1406, 1412, and *Whelihan v. Espinoza* (2003) 110 Cal.App.4th 1566, 1576].) But the FAC alleges that, whatever the manufacturer’s instructions were, the AquaDash was placed in water too shallow for a person of Plaintiff’s age and/or height to use it safely. (See FAC, pp. 4-5.)

Second, whether the City complied with the AquaDash’s manufacturer’s specifications is a disputed fact. It is undisputed that the AquaDash’s manufacturer’s guidelines set the maximum user height at 1.8 meters. (UMF No. 19; see City’s Ex. B [last page].) It is likewise undisputed

that 1.8 meters is 5 feet, 10.8 inches,² and that Plaintiff is taller than that at 5 feet, 11 inches. (UMF No. 29.) The City's Senior Supervisor for the Recreation Division testified that the City was not following the 1.8-meter manufacturer guideline in August 2023. (Speed Dec., Ex. 1, 90:24-91:3; see also Younkin Dec., ¶ 1.) The City has conceded the materiality of the fact of its compliance with the manufacturer's recommendations for the use of the AquaDash by offering that as an undisputed material fact. (See UMF No. 12 ["At the time of the incident, the City operated the AquaDash in compliance with the manufacturer's recommendations regarding placement, anchoring, and use, and no changes to the installation have been made since the subject incident."]; see *Insalaco v. Hope Lutheran Church of West Contra Costa County* (2020) 49 Cal.App.5th 506, 521.) That the City's compliance with the manufacturer's instructions is disputed precludes summary judgment or adjudication.

The motion is DENIED as to this issue.

Issue 5: "Plaintiff cannot establish more or more elements of Government Code § 815.2, as required to sustain Plaintiff's general negligence cause of action against the City"

The City argues that it necessarily must prevail as to this claim for the same reasons it is entitled to summary adjudication of the dangerous condition claim. Because the Court has found that the City is not entitled to summary adjudication of the dangerous condition claim, it denies summary adjudication as to this issue.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-qov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

Meeting ID: 160 526 7272

Passcode: 026935

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² Plaintiff states that he disputes "the accuracy of [the City's] calculation that 1.8 meters (as stated in the evidence cited) is equivalent to 5 feet 10.8 inches." (RSS No. 29.) Plaintiff does not provide an alternative calculation or any evidence in support of the idea that the City's calculation is inaccurate. This is not sufficient to establish that the accuracy of the City's calculation is a disputed fact. (See Cal. Rules of Court, rule 3.1350(f)(2).)

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO. CV0007638

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

PLAINTIFF: JPMORGAN CHASE BANK,
N.A.

vs.

DEFENDANT: NIKHILESH N. SINGH

NATURE OF PROCEEDINGS: 1) MOTION - ADMISSIONS - DISCOVERY FACILITATOR PROGRAM
2) MOTION - COMPEL - DISCOVERY FACILITATOR PROGRAM

RULING

Appearances required.

In his (very) untimely opposition, Defendant concedes that he did not respond to Plaintiff's requests for admission. However, he asserts that he has prepared responses and that they will be served before the hearing. Based on this representation, the parties shall be prepared to address whether the responses are in substantial compliance with Code of Civil Procedure section 2033.220.

If substantially compliant responses are served on Plaintiff before the hearing, the motion to deem the requests admitted will be denied as moot. (See Code Civ. Proc., § 2033.280, subd. (c).) It is mandatory under the statute that the Court impose a monetary sanction on the party whose failure to serve a timely response to requests for admission necessitated the filing of the motion. (*Id.*) Thus, the parties should be prepared to address what sanctions are appropriate in these circumstances.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

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**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 09/15/26 TIME: 1:30 P.M. DEPT: A CASE NO: CV0010253

PRESIDING: HON. STEPHEN P. FRECCERO

REPORTER:

CLERK:

IN THE MATTER OF:

J.G. WENTWORTH ORIGINATIONS, LLC

NATURE OF PROCEEDINGS: MOTION - OTHER: PETITION FOR APPROVAL FOR
TRANSFER OF PAYMENT RIGHTS

RULING

Petitioner is seeking judicial approval of the transfer of certain structured payment rights. The Structured Settlement Protection Act, set forth in Insurance Code sections 10134 et seq. (the “Act”), regulates the transfer of beneficial rights under structured settlement agreements. The Act was adopted by the Legislature in order “to protect structured settlement payees from exploitation by factoring companies.” (*RSL Funding, LLC v. Alford* (2015) 239 Cal.App.4th 741, 745.)

To be valid, a transfer of rights requires court approval and express judicial findings, *inter alia*, that the proposed transfer is in the best interest of the payee and will not contravene other applicable laws. (See Ins. Code, § 10139.5.) Because judicial approval is required, the petition filed with the Court must contain the information necessary to make such findings, including the payee’s name, age, marital status, whether there are minor or dependent children, or the amounts or sources of the payee’s income and financial resources. (See Ins. Code, § 10139.5(c).)

The current petition and motion was served on the annuity issuer and the structured settlement obligor. Neither party has opposed or objected to the transfer. The petition is supported by the declaration of the payee/transferor who currently resides in this County. The declaration contains the information required by the Act. Although the payee/transferor was advised to receive independent legal advice, he declined to do so and instead signed a waiver. Based on the information provided by Petitioner and the payee/transferor, the Court finds the transfer is in the best interest of the payee and grants approval to the transfer.

All parties must comply with Marin County Superior Court Local Rules, Rule 2.10(B) to contest the tentative decision. Parties who request oral argument are required to appear in person or remotely by ZOOM. Regardless of whether a party requests oral argument in accordance with Rule 2.10(B), the prevailing party shall prepare an order consistent with the announced ruling as required by Marin County Superior Court Local Rules, Rule 2.11.

The Zoom appearance information for September, 2026 is as follows:

<https://marin-courts-ca-gov.zoomgov.com/j/1605267272?pwd=908CbP6TV2mhCAyai1nzo6lyz2dKaw.1>

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